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URGENT Addendum to DSAR: Scope Expansion, Infrastructure Subprocessor Logs, and Statistical Verification Framework (AMO v1.0)

1 message

Artiom Kovnatsky <skovnats@gmail.com>

Mon, Jun 29, 2026 at 9:00 AM

To: privacy@github.com, dpo@github.com, legal@github.com

Cc: GitHub Developer Support <developer@githubsupport.com>

Dear GitHub Legal and Data Protection Team,

In reference to my ongoing comprehensive Data Subject Access Request (DSAR) under Article 15 GDPR and Article 17 DSA, and to ensure the absolute evidentiary integrity of the impending (possible) judicial process, I hereby submit this official Addendum to clarify and expand the scope of the requested datasets.

To prevent (possible) procedural information asymmetry, semantic obfuscation, and ontological divergence that may impede the (possible) Court from establishing the absolute Truth, the technical data volume required for verification is defined under the following rigorous **Axiomatics-Methodology-Ontology [AMO]** framework.

You are invited to review, clarify, or counter-propose an alternative **AMO** framework within the statutory compliance window. Any counter-proposed framework must explicitly demonstrate that it lowers systemic bias, maintains absolute procedural Symmetry, and ensures 100% scientific reproducibility by independent experts.

Dynamic AMO Framework Adjustments («Calculemus!»):

For the avoidance of doubt, the **Axiomatics-Methodology-Ontology (AMO)** framework is not a fixed, non-negotiable ultimatum. Acting in strict accordance with scientific principles, I remain fully receptive to your alternative proposals, revisions, or technical counter-arguments regarding both the metrics and the baseline axioms. However, any such modifications are strictly conditional upon your team providing rigorous, peer-reviewed, or scientifically sound justification demonstrating that your counter-proposed framework achieves a higher degree of procedural Symmetry, a demonstrable reduction in algorithmic/selection bias, and maintains perfectly equal temporal windows for cross-falsification for both parties.

Axiom 0 (Data Asymmetry Constraint):

GitHub possesses a strict superset of data relative to the Data Subject within the scope of infrastructure logs. Any historical telemetry, server logs, metadata, and routing traces from manually deleted or archived repositories remain accessible within your underlying object databases (Art. 15(1) GDPR).

- **Corollary 0.1:** Any statistical anomaly test executed on the domain of Axiom 0 can

be replicated by any qualified independent expert, provided the execution code and instructions are open-access.

- **Corollary 0.2:** Incorporating the broader infrastructure-level data held exclusively by the Controller [GitHub & CO.] can only increase the precision and statistical power of the output relative to the baseline established by the Data Subject.

Axiom 1 (Data Minimization and Algorithmic Auditing):

Pursuant to Articles 15(1)(h) and 22(3) of the GDPR, as well as Articles 17 and 23 of the DSA, personally identifiable information (PII) of third parties is mathematically non-requisite for the execution of inferential statistical tests. To enable an independent, reproducible assessment of the automated decision applied to any account [incl. mine], I explicitly request:

a) Reference-cohort data (aggregated, non-personal): the aggregate statistics for comparable developer accounts within the same automated risk classification profile over Q1–Q2 2026—including total flags, manual-review rates, reversal rates, and median time-to-reversal.

b) Per-account decision record: the specific input features, automated hazard scores, and system thresholds that triggered the flag on my account, along with exact UTC start/end timestamps.

c) The verified false-positive rate of the exact classifier version deployed against my profile.

d) Classifier Update and Versioning Telemetry: the exact dates, release version numbers, and deployment timestamps of any updates or calibrations made to the automated moderation model/rule-set applied to my account within the window of 01.03.2026 to 01.05.2026, to identify structural changes in classifier performance.

e) Cross-Model LLM Triangulation and Methodological Legality Protocol: To systematically eliminate data-selection and p-hacking biases, the final verification pipeline will include an automated consensus audit. A panel of 3+1 independent, state-of-the-art Large Language Models (acting as cross-verifiers and 1 Meta-AI Arbiter) will be provided with the exact execution code, reference cohorts, and metrics. Beyond executing calculations, the panel is strictly required to evaluate the "conceptual soundness and legal validity" of the test itself—verifying that the reference groups are homoscedastic, logically comparable, and free of structural bias. A binding statistical anomaly shall only be declared if a strict 80% consensus is achieved among the models, validating both the methodological legality of the comparison and that the deviation reaches an extreme significance threshold of $p < 0.01$ (99% confidence interval—the standard for critical clinical and structural testing), thereby applying an ultra-conservative and platform-favorable baseline.

Axiom 2 (Mathematical Neutrality vs. Expert Bias):

A statistical test with sufficient statistical power and data density constitutes the most scientifically neutral vehicle for anomaly detection, eliminating subjective cognitive and institutional biases.

Axiom 3 (Primacy of Statistical Evidence):

Where data density allows for statistical verification, the statistical test must serve as the primary epistemic benchmark. Any counter-assessment by (platform) experts must mathematically falsify the underlying p-values or volumetric distributions to hold evidentiary weight before the Court.

Axiom 4 (Reference Group Integrity):

Statistical tests must evaluate homoscedastic and contextually appropriate cohorts ("comparing apples to apples"). Urgency, system load variations, and classification hierarchies must be structurally normalized.

Axiom 5 (Temporal Anomaly Targeting):

If a critical system event occurs on a specific date (specifically, the signing of the SVE License on 01.04.2026), statistical testing must be rigorously applied to tight temporal windows surrounding said date against a structurally normalized baseline to isolate targeted algorithmic deviations.

1. Cross-Infrastructure & Subprocessor Logs (Art. 28 GDPR):

The scope of this request explicitly covers all metadata, traffic-routing configurations, blocklist triggers, and security flags generated or handled on your behalf by your upstream network infrastructure providers, including but not limited to Cloudflare, Inc. You are requested to retrieve these infrastructure and routing logs from your processors under your Article 28 GDPR obligations to ensure a complete and unredacted dataset.

Public Access and Reproducibility Notice:

To guarantee absolute transparency, all underlying source codes, pipelines, and mathematical models supporting this framework are permanently committed to the public domain and fully reproducible at:

- **Repository and Klage-IT Target [WIP]:** <https://codeberg.org/skovnats/SVE-Systemic-Verification-Engineering/src/branch/master/Community/OpenLetters/DE/Klage/IT>

- **Anomaly and Volumetric Mitigation Tutorial:** https://codeberg.org/skovnats/SVE-Systemic-Verification-Engineering/src/branch/master/Community/Anomaly_Calls_Detection_Tutorial

- **Statistical Inference Framework Documentation:** <https://share.note.sx/mvm49sta#WjzEb6L/vVyFwdyZuk8GQ2RV/k9hltKOd0LHhbj3l/c>

Procedural Timeline and Ontological Estoppel:

Your technical and legal experts are invited to contest, refine, or query any element of this **AMO**. I bind myself to deliver exhaustive clarifications within 72 hours of receiving a formal inquiry.

If no structured, scientifically justified written objections or alternative **AMO** frameworks meeting the criteria of Symmetry and Bias-Reduction are received within

7 business days from this notice—and in no scenario later than **07.07.2026 at 07:07 CET**—it shall be deemed under the principles of Good Faith and procedural estoppel that this framework constitutes the documented technical baseline for establishing factuality.

Axiom 6 (Symmetric Falsification Window):

Upon the publication of my completed statistical replication models at the corresponding open-access directory, a 44-day window is established for your experts to judicially or scientifically contest the output. Silence or failure to present a verifiable, open-code replication run on your data within 44 days shall be documented as your acceptance of the statistical baseline for the (possible) impending judicial proceedings. Should your internal verification yield divergent results, you are requested to share the anonymized dataset, seed configurations, and structural code under the same symmetric 44-day window for cross-falsification: same deadline and principles also for me.

- Corollary 6.1 (Anti-Manipulation and Verification Guardrail):

Should your internal experts submit a divergent replication run or counter-dataset, it must remain subject to strict methodological review. If the Data Subject raises structured objections regarding data-selection biases, hidden confounding variables, and/or inappropriate normalization techniques applied by your platform, and a 99% consensus among the independent 3+1 LLM panel validates these objections as conceptually and scientifically well-founded, your counter-assessment shall be deemed automatically void and procedurally barred from holding evidentiary weight.

- Corollary 6.2 (Personal Accountability, Integrity Certification, and Pre-Clearance Protocol):

To guarantee absolute professional integrity, any counter-assessment, data selection, communication, or replication run submitted by your organization during the collaborative verification window must be personally certified and signed using the internal, non-personal system identifiers [internal IDs and **NOT personal data**] of the specific data scientists, engineers, and/or compliance officers executing the task. Each individual submission and communication must explicitly include a formal affirmation stating that the data provided is full, accurate, unaltered, and submitted in strict accordance with the principles of Good Faith to the best of their professional knowledge.

If these specialists fail to scientifically justify their parameters following a 99% consensus rejection by the LLM panel, or if the provided telemetry is found to be intentionally structurally compromised, it shall be (perhaps) formally documented as a prima facie evidence of intentional procedural deception with all subsequent civil and criminal liabilities in the legal domain.

To proactively eliminate this risk, your team is formally invited to consult with the Data Subject regarding the experimental design and/or cohort selection **BEFORE** and/or during the data extraction process. I bind myself to provide exhaustive,

binding technical feedback within 72 hours of any formal inquiry. Should your organization bypass this pre-clearance collaboration and proceed with unverified, non-consensual datasets, it shall be deemed a waiver of your right to contest the methodological baseline, and such unilateral tests shall be considered procedurally void before the Court.

Conditional Settlement and Systemic Remedy Clause:

Furthermore, acting in accordance with the highest principles of Good Faith and the advancement of open science, I hereby formally commit to the following: This entire dispute shall be deemed permanently resolved and legally closed in the exact same second, subject ONLY to the strict condition that your organization successfully passes the Verification Protocol through a rigorous 80% performance threshold. Specifically, out of the [4+1 independent statistical tests], your platform is permitted to fail a maximum of exactly 1 test (accounting for isolated architectural anomalies). The remaining 4 successful tests must each independently achieve a strict 80% consensus validation within the Cross-Model LLM Triangulation Protocol, verifying that the data distributions reach the platform-favorable baseline of $p < 0.01$.

If this composite 80% metrics clearance is achieved—demonstrating that the restriction was indeed a routine false-positive algorithmic error executed without targeted malicious intent—and your organization fully cooperates in establishing this factual baseline, the settlement is activated, subject only to two strict conditions:

1) Nominal Restitution: A symbolic financial restitution of exactly 404.00 EUR (representing the structural "404 Not Found" systemic anomaly) to compensate for infrastructure maintenance overheads and unnotified service degradation during the lockdown period—specifically accounting for the subscription charges levied for premium services (GitHub Pro) while access was blocked, the systemic deception of third parties who encountered connection errors when attempting to access public repositories via shared links, the operational disruption of connected academic integrations (Zenodo communities), the unnotified and structurally unverified downtime/inaccessibility of my professional and personal portfolio-website and research blog (www.artiomkovnatsky.com) for an indeterminate duration within the affected temporal window, and related professional inconveniences including reputational.

2) Algorithmic Risk Mitigation Warranty: A formal, binding commitment from your technical compliance team to analyze this specific classification failure and calibrate your automated content-moderation engines (WAF, Bot Management, and Spam classifiers, etc.), ensuring that independent global researchers and/or open-source architects face a significantly lower probability of entering similar algorithmic deadlocks in the future.

The conditional settlement option of exactly 404.00 EUR is strictly time-bound and shall be automatically and permanently revoked on **07.07.2026 at 07:07 CET**. Should your organization fail to initiate the collaborative Pre-Clearance Protocol and successfully clear the statistical thresholds prior to this explicit deadline, all initial

compromise paths shall be rendered expired, transitioning this file exclusively into a high-stakes statutory tracking framework. If no formally binding "yes" signal in any verifiable form is received by **07.07.2026 at 07:07 CET**, the settlement option is closed permanently, rendering the subsequent 44-day verification window entirely void and irrelevant.

Following the timely reception of said affirmative signal and the expiration of this initial window, a strict 44-day operational period is established to execute and pass the core verification conditions (specifically, achieving the 80% Cross-Model LLM Triangulation consensus across at least 4 out of 5 synchronized statistical tests). A maximum extension of exactly 11 additional days may be granted solely under documented circumstances of extreme architectural necessity, capping the absolute temporal limit at 55 days.

If, upon the hard stop of day 55, a definitive conclusion of a "routine false-positive algorithmic error executed without targeted malicious intent" is not scientifically and procedurally confirmed through the framework, the settlement proposal is irrevocably withdrawn without further remedy, immediately activating the Final Escalation Protocol.

Final Escalation Warning on Refusal of Verification:

For the avoidance of any doubt, please be formally forewarned: if your organization fails and/or refuses to execute the requisite statistical verifications [4+1 independent statistical tests] and infrastructure data audits within the standard compliance window, I shall conclusively presume that the algorithmic restriction was not a routine anomaly, but a manifestation of intentional, targeted intervention against the independent researcher [incl. SVE framework].

Such a refusal to engage in transparent, symmetric verification shall permanently close the door to any out-of-court settlements, mutual agreements, or conditional remedies, irrespective of any subsequent financial offers or arguments. In that scenario, all compromise options are immediately revoked, and this matter (possibly) will transition entirely to a strict, adversarial legal calculation. I will (possibly) deploy the maximum available statutory leverage under GDPR and DSA to pursue the absolute highest legal compensation, structural penalties, and regulatory sanctions across all applicable jurisdictions.

Third-Party Data Interoperability Authorization:

In the event that your platform utilized, shared, or relied upon external threat intelligence feeds, corporate vendor infrastructure, or third-party automated moderation engines in connection with my identity and/or the SVE framework and/or spam detection, I hereby grant explicit, irrevocable authorization under the GDPR to utilize my personal data to retrieve the exhaustive, unredacted log history from said third parties and immediately transmit the complete volume to me. In case you need anything else, please contact me immediately and within a reasonable time frame, I'll

do my best to provide what is missing.

Sincerely,

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Regards | MfG
Dr. Artiom A. Kovnatsky
www.artiomkovnatsky.com | Founder [S.V.E.](https://zenodo.org/communities/sve) | <https://zenodo.org/communities/sve>

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Visual Matrix: Binary Choice Framework (Asset for Addendum)

Parameter / Criterion	Scenario A: "Safe Harbor" (404.00 EUR) PDF	Scenario B: "Hard Escalation" (.) PDF
Platform's Procedural Choice	Good Faith collaboration, scientific validation, and transparency.	Silence, evasive corporate boilerplate, or algorithmic sabotage/sabotage of testing.
Temporal Window (Hard Deadline)	Strictly BEFORE 07.07.2026 at 07:07 CET via an explicit, verifiable "yes" signal.	After 07.07.2026 at 07:07 CET (Automatic trigger activation upon silence or rejection).
Verification Thresholds	Platform-Favorable Error Margin (80%): Success required in 4 out of 5 synchronized statistical tests; 1 architectural anomaly failure permitted.	0% Error Tolerance: Complete transition of the file into a strict, high-stakes statutory tracking and legal calculation framework.
Statistical Evidentiary Asymmetry	In Favor of GitHub: Platform clears liability at 80% consensus. Against Data Subject: Objections require an ultra-conservative 99% confidence interval ($p < 0.01$) via Cross-Model LLM Triangulation.	Asymmetry Revoked: Loss of the "loyal" 80% safe harbor. The $p < 0.01$ significance threshold transforms into absolute, un rebutted judicial evidence of targeted intervention or gross systemic negligence.
Personal Accountability & Traceability	De-anonymized Verification: Every log, communication, and dataset certified via an internal system ID of the executing specialist, affirming data is full, accurate, and unaltered under Good Faith.	Collective Anonymous Liability: Full corporate presumption of intentional procedural deception and unlawful evidence concealment (Beweisvereitelung).
Financial & Remedial Scope	Symbolic Restitution of exactly 404.00 EUR (Manifestation of the "404 Not Found" systemic anomaly) paired with an Algorithmic Risk Mitigation Warranty.	Uncapped Statutory Damages: Maximum civil penalties, compliance audits, and regulatory sanctions under GDPR and DSA frameworks across all applicable jurisdictions and possibly more.

Parameter / Criterion	Scenario A: "Safe Harbor" (404.00 EUR) PDF	Scenario B: "Hard Escalation" (.) PDF
Compensated Damage Domain	Symbolic Acknowledgement of the Casual Cascade: • Blocked premium infrastructure (GitHub Pro subscription charges). • Disruption of open-science and academic integrations (Zenodo communities). • Systemic deception of third parties (connection errors via shared public repository links). • Total unnotified downtime/inaccessibility of personal professional website/portfolio blog (www.artiomkovnatsky.com) hosted via GitHub Pages. • Accompanying professional, scientific, and international reputational damage. • <i>Other latent, unitemized infrastructure-level degradation anomalies.</i> • <i>Second-third-...-n-th order consequential damage.</i>	Full Exhaustive Quantification: Real-time computation of professional blockages, career stagnation, verified loss of international scientific visibility, and structural bad-faith escalation premiums assessed by the Court.
Dynamic AMO & Axiomatic Flexibility	Fully Adaptive Open Protocol: The AMO framework is NOT fixed. Revisions, technical counter-arguments, or adjustments are welcomed if scientifically justified to lower bias, enhance symmetry, and secure equal cross-falsification windows.	Procedural Estoppel Freeze: All rights to contest the technical baseline, mathematical design, or validation criteria are permanently waived and procedurally barred.

Procedural Notes & Structural Observations for the Court / Potential Judge

1. Manifestation of Absolute Good Faith (*Good Faith Baseline*)

The Data Subject has intentionally constructed Scenario A as a hyper-lenient, mathematically objective "Safe Harbor". By asking for a purely symbolic financial settlement of 404.00 EUR against a multi-layered cascade of professional, structural, and academic damages (including the complete, unnotified downtime of the data subject's primary portfolio website on GitHub Pages), the claimant demonstrates that this action is driven exclusively by the pursuit of scientific Truth and algorithmic accountability, not commercial enrichment.

2. Procedural Estoppel and Waiver of Technical Rebuttal

By explicitly offering the Controller a window to query, contest, or

scientifically adjust the Axiomatics-Methodology-Ontology (AMO) framework under equal, symmetric temporal parameters, the Data Subject prevents any subsequent claims of "unfair or impossible conditions". Silence or refusal to engage prior to the hard stop of 07.07.2026 at 07:07 CET operates as a binding procedural estoppel. Consequently, the platform's failure to object establishes this AMO framework as the undisputed technical baseline for all subsequent judicial calculations.

3. Evidentiary Asymmetry and Shift in the Burden of Proof (*Beweislastumkehr*)

The framework relies on a highly platform-favorable 80% baseline for clearance, while restricting the claimant's own objections to an ultra-conservative 99% confidence threshold ($p < 0.01$). If the Controller rejects or evades this transparent, open-access verification procedure, such conduct satisfies the strict criteria for intentional evidence frustration (*Beweisvereitelung*). Under applicable civil procedural rules, this refusal shifts the legal burden of proof entirely onto the platform, allowing the Court to draw direct adverse inferences regarding targeted, non-routine algorithmic intervention.

4. Technical Traceability vs. Corporate Shielding

The requirement for internal non-personal identifier signatures prevents the corporate controller from masking human intervention or systemic data-filtering behind automated "system anomalies." By ensuring that each technical step is tied to an internal ID affirming data integrity, the protocol eliminates bad-faith information asymmetry, providing the Court with an unredacted, scientifically sound ledger of facts.

5. Methodology Evolution & Version Control (AMO Framework)

To ensure maximum scientific rigor, transparency, and traceability, this process introduces formal version control for the Axiomatics-Methodology-Ontology framework, starting with **AMO v1.0** as presented herein. Any subsequent optimizations, peer-reviewed adjustments, and/or symmetric calibrations proposed by either the Claimant, the Legal Consortium, and/or qualified third-party experts will be tracked via strict semantic versioning (e.g., v1.1, v1.3 ... v2.0 ... v.9.9). This protocol guarantees that the Court evaluates the technological baseline strictly in accordance with the state-of-the-art evolution of digital verification engineering, preventing the Controller from retroactively applying outdated technical parameters.

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P.S. #1 (Notice of Regulatory and Structural Alignment)

Please be reminded that under EU law, any attempt to circumvent the fundamental "spirit" of the GDPR by abusing procedural technicalities, delivering curated/partial datasets, or concealing the involvement of third parties constitutes a severe structural violation. Under the EU General Data Protection Regulation and relevant national jurisdictions, personal executive liability—including potential criminal exposure for obstruction of justice and willful destruction/falsification of evidence—cannot be shielded by corporate indemnity policies if compliance officers knowingly facilitate the concealment of unlawful processing.

Furthermore, complying with non-statutory, external, or covert third-party directives to restrict this disclosure directly breaches your professional obligations and may trigger reporting mechanisms under the EU Whistleblower Directive. The only legally sound, risk-mitigating path for all individuals handling this file is absolute transparency: delivering the exhaustive, unredacted data volume strictly in accordance with the law.

As these services are actively targeted at and processed within the European Single Market, your designated EU Representative and EU Data Protection Officer bear direct jurisdictional and strict liability under Article 27 and Chapter VIII of the GDPR. Any attempt to redirect this statutory enforcement to non-EU corporate entities or external US counsel to evade compliance will be documented as an independent, structural breach of the regulation.

P.S. #2 (Clarification Protocol)

For the avoidance of doubt, if any ambiguities, uncertainties, or interpretive questions exist regarding the wording, specific intent, or legal scope of this notice, you are hereby requested to seek immediate clarification. I will provide an explicit clarification within 72 hours of receiving a formal inquiry from your DPO or authorized legal counsel.

Should you fail to request such clarification within a reasonable timeframe prior to the deadline, it shall be conclusively presumed under the principles of good faith and procedural estoppel that the entire content has been fully understood in its original, intended sense. Any subsequent claims of ambiguity, misinterpretation, or vagueness will be strictly rejected as procedurally barred and waived. Consequently, all legal risks, interpretive liabilities, and subsequent enforcement responsibilities shall rest solely on your organization.

P.S. #3 (Duty of Candor Integration)

Out of an abundance of caution and in adherence to the fundamental principles of justice, transparency, and the Duty of Candor, you are hereby requested to exercise your professional expertise proactively. If your systems contain any additional, highly relevant metadata, communication logs, or architectural traces from 2025-2026 that are material to establishing the absolute truth of this matter—even if such specific technical categories were not explicitly itemized in my prior text due to asymmetrical information—you are required by the spirit of EU law not to withhold them.

Any passive concealment of critical evidence under the guise of narrow, literal interpretation will be documented as bad faith and an intentional obstruction of impending judicial proceedings. I call upon your executive leadership and compliance monitors to actively assist the Court, demonstrate institutional integrity, and ensure that your infrastructure is not utilized to shield structural violations of law.

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DE (Deutsch)

Philosophisch-wissenschaftliches Fundament (Im Geiste von **Gottfried Wilhelm Leibniz**)

Dieser gesamte Diskurs und das zugrundeliegende AMO-Framework sind im Geiste der klassischen wissenschaftlichen Tradition zu verstehen. G.W. Leibniz – der nicht nur als einer der größten Denker Europas gilt, sondern auch das binäre Zahlensystem (\$0\$ und \$1\$) erfand, auf dem die gesamte moderne digitale Infrastruktur und KI-Klassifikatoren basieren – postulierte, dass die Mathematik die universelle Sprache der Harmonie und der Gerechtigkeit ist.

Sein berühmtes Prinzip „*Calculemus!*“ („Lasst uns rechnen!“) besagt, dass formale, mathematische Methoden genutzt werden müssen, um Streitigkeiten objektiv, unparteiisch und unteilbar aufzuschlüsseln. In einer Ära, in der fragmentierte Algorithmen und Black-Box-Systeme die digitale Sphäre dominieren, fordert dieses Verfahren die Rückkehr zu dieser klassischen Einheit von Wissenschaft, Logik und Recht. Das AMO-Framework ist kein einseitiges Ultimatum, sondern das mathematische Werkzeug, um die leibnizsche prästabilisierte Harmonie und eine absolute verfahrensrechtliche Symmetrie im digitalen Raum wiederherzustellen.

EN (English)

Philosophical and Scientific Foundation (In the Spirit of **Gottfried Wilhelm Leibniz**)

This entire discourse and the underlying AMO framework must be understood in the spirit of the classical scientific tradition. G.W. Leibniz — recognized not only as one of Europe's greatest minds but also as the inventor of the binary numeral system (\$0\$ and \$1\$) upon which all modern digital infrastructure and AI classifiers are built — postulated that mathematics is the universal language of harmony and justice.

His famous maxim “*Calculemus!*” (“Let us calculate!”) dictates that formal, mathematical methods must be deployed to resolve disputes objectively, impartially, and indivisibly. In an era where fragmented algorithms and black-box systems dominate the digital sphere, this procedure demands a return to the classical unity of

science, logic, and law. The AMO framework is not a unilateral ultimatum; rather, it is the mathematical instrument required to restore Leibnizian pre-established harmony and absolute procedural symmetry within the digital domain.

RU (Русский)

Философско-научный фундамент (В духе Готфрида Вильгельма Лейбница)

Весь этот дискурс и лежащая в его основе структура АМО должны пониматься в духе классической научной традиции. Г.В. Лейбниц — признанный не только одним из величайших мыслителей Европы, но и изобретателем двоичной системы счисления (\$0\$ и \$1\$), на которой построена вся современная цифровая инфраструктура и ИИ-классификаторы, — постулировал, что математика является универсальным языком гармонии и справедливости.

Его знаменитый девиз «*Calculamus!*» («Давайте посчитаем!») гласит, что для объективного, беспристрастного и неделимого разрешения споров необходимо использовать формальные математические методы. В эпоху, когда в цифровой сфере доминируют фрагментированные алгоритмы и системы «черного ящика», этот процесс требует возврата к классическому единству науки, логики и права. Структура АМО — это не односторонний ультиматум, а математический инструмент, необходимый для восстановления лейбницевской предустановленной гармонии и абсолютной процессуальной симметрии в цифровом пространстве.

On Fri, Jun 26, 2026 at 11:11 AM Artiom Kovnatsky <skovnats@gmail.com> wrote:

Berlin, 25 June 2026 GitHub, Inc., 88 Colin P. Kelly Jr. Street, San Francisco, CA 94107, USA — and, as EU controller / EU establishment / EU representative — GitHub B.V., Prins Bernhardplein 200, 1097JB Amsterdam, The Netherlands — and Data Protection Officer (dpo@github.com)

Dear GitHub Privacy Team and Data Protection Officer,

I am the data subject and account holder 'skovnats' (Registered email: skovnats@gmail.com; Linked PayPal billing identity: artiom.kovnatsky@gmail.com; Wirtschafts-Identifikationsnummer: DE405667512). The substantive subject-matter of this request is the temporary restriction of my account between approximately 7 April 2026 and 24 April 2026 (Support ticket #4253477).

Part A — Request under Article 15 GDPR Pursuant to Article 15(1) GDPR, I request access to my personal data and the following information:

- The purposes of the processing of my personal data, including any processing

connected to abuse detection, integrity/anti-abuse systems, account restriction, and automated decision-making.

- The categories of personal data concerned, including but not limited to: account profile data, access and session logs, billing data, any moderation or trust-and-safety records, any classifier outputs or signals applied to my account, and all internal notes or escalations relating to my account (incl. ticket #4253477).
- The recipients or categories of recipients to whom my personal data have been or will be disclosed.
- Legal basis — identity of recipients. I rely on Art. 15(1)(c) GDPR as interpreted by the Court of Justice of the European Union in Case C-154/21, RW v Österreichische Post AG (judgment of 12 January 2023): the data subject is entitled, upon request, to the actual identity of the recipients of their personal data, not merely the categories of recipients. I therefore request the specific identities. An incomplete or evasive response will be treated as a failure to respond within the meaning of Art. 12(3) GDPR, and I reserve the right to lodge a complaint with the competent supervisory authority under Art. 77 GDPR.
- Where the personal data are not collected from me directly, any available information as to their source (Article 15(1)(g) GDPR).
- Meaningful information about the logic involved in automated decision-making, the significance and envisaged consequences, the input features considered, the output(s) generated for my account, and human-review records (Article 15(1)(h) and 22(3) GDPR).

Part B — Request under Article 17 DSA Pursuant to Articles 17(1) and 17(3)(a)-(f) DSA, I request a written statement of reasons for the restriction containing:

- The facts and circumstances relied on, including whether the restriction was triggered by a content-based signal, an account-behaviour signal, or a third-party notice (Art. 17(3)(b) DSA).
- Information on the use of automated means in taking the decision (Art. 17(3)(c) DSA).
- A reference to the legal ground or contractual ground relied on (Art. 17(3)(d)-(e) DSA).
- The "Permanent Unique Identifier" (PUID) of the statement of reasons.

I hereby formally submit a complaint under Article 20 DSA against the restriction of 7-24 April 2026, and request access to the procedure.

Specific items requested

- (a) The internal record of the actions applied to the account between 1 March

2026 and 30 April 2026, with timestamps (UTC), action type, applied scope, and unique system identifiers.

- (b) The identity, version, and operating description of any classifiers, heuristics, or rules whose output contributed to the actions.
- (c) The records of human review that preceded the action and its reversal.
- (d) Any third-party notice, report, or signal that contributed to the action.
- (e) The Statement of Reasons under Article 17 DSA and its PUID.
- (f) The complete record of Support ticket #4253477.
- (g) The technical type and operative architecture of the restriction applied to the account and/or its repositories, including whether it consisted of, or included, any visibility, discoverability, or stealth („shadow“) restriction (e.g. de-indexing, demotion, metadata isolation) as opposed to or in addition to a full account block. Please explain specifically why third parties encountered technical barriers — connection timeouts, access errors, or file/PDF rendering or download failures — when attempting to view, fork, or download files from my public repositories during the period, while the account interface internally displayed normal operational status.
- (h) The complete output of the anti-abuse / spam classifier(s) applied, including: (i) the specific category label, the severity/risk score, and the probability or score threshold triggered; and (ii) the specific item that triggered the automated flag — identifying the commit hash, the individual file path within that commit, and/or the account/traffic signal concerned. If more than one trigger contributed, identify each.
- (i) The human-review log and system audit trail, including: (i) the UTC timestamps at which the automated alert was generated and at which it was assigned to a human reviewer; (ii) the internal system identifier or pseudonymous identifier of the reviewer (the reviewer's personal name is not requested); (iii) the duration of the reviewer's access to my files, repositories, and account metadata; and (iv) the reviewer's findings, internal tags, or system notes that led to the restriction and to its subsequent lifting.
- (j) Standard procedure and benchmarks: a description of your standard procedure for automated abuse/spam detections of this category — including whether and at what stage such detections are escalated to human review — your median processing time (SLA) from initial automated detection to human review and to action, and your notification policy, in particular why no contemporaneous notice or statement of reasons was issued to me at the moment any external-visibility restriction took effect (cf. Art. 17(1) and (3) DSA).
- (k) Third-party, governmental, and law-enforcement involvement (Art. 15(1)(c) and (g) GDPR; Art. 16 DSA). Please confirm whether the action taken in

respect of the account 'skovnats' or its repositories was triggered by, contributed to by, or accompanied by any communication from a third party — including any private entity, any notifier under Art. 16 DSA, any security contractor, or any governmental, administrative, intelligence, or law-enforcement authority of any jurisdiction. If so, please provide, to the extent not prohibited by a specific and identified legal restriction: (i) the date and UTC timestamp of the communication; (ii) the identity or category of the originating entity; (iii) the legal or statutory basis invoked; and (iv) the specific processing or restriction requested or carried out as a result. If you withhold any such information, please identify the specific legal provision authorising you to do so.

- **(o) Data Protection Impact Assessment (Art. 35 GDPR).** Please provide the non-confidential summary or relevant excerpts of the Data Protection Impact Assessment (DPIA) conducted for the automated abuse-detection, spam-filtering, and account-flagging systems applied to my account. I specifically request the findings concerning the assessed risks, error rates, and mitigation measures regarding false-positive restrictions.

(p) Data Portability (Art. 20 GDPR). Please provide a machine-readable export (e.g., in JSON or XML format) of the exact state of my account metadata—and, where applicable, repository metadata—during the exact period the restriction was active. This export must include all internal database flags, visibility states, system tags, and moderation labels assigned to the account at that time.

(q) Systemic Error Rates and Proportionality (Art. 15 and 23 DSA). To enable an assessment of the proportionality and diligence of the automated measures applied, please provide the specific statistical error rate (false-positive rate) of the exact classifier, filter, or rule version that triggered the restriction on my account, as evaluated in your most recent quality assurance, algorithm training, or systemic risk assessments.

Please provide the response in a commonly used electronic form within one month of receipt (Article 12(3) GDPR).

P.S.

Rule of Interpretation in the Spirit of the Law [for all documents-requests]

Should any technical or legal terms used in the enclosed requests allow for multiple interpretations, I demand that you strictly apply the interpretation that most fully satisfies the spirit of the law (IFG, DSA, GDPR), the principle of transparency, and the maximum protection of human rights. Any deliberate exploitation of definitional gaps to withhold data will be treated as bad-faith obstruction of the truth.

Yours sincerely,

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Regards | MfG

Dr. Artiom A. Kovnatsky

www.artiomkovnatsky.com | Founder S.V.E. | <https://zenodo.org/communities/sve>

On Thu, Jun 25, 2026 at 11:06 PM Artiom Kovnatsky <skovnats@gmail.com> wrote:

Dear GitHub Privacy / Trust & Safety Team,

I am the holder of the GitHub account 'skovnats'. GitHub Support confirmed on 24 April 2026 that my account had been flagged by GitHub's automated abuse-detection systems and that the restriction was subsequently cleared after manual review.

I am assessing legal proceedings in connection with that restriction and the subscription charges levied during it. I therefore formally request that GitHub preserve, and refrain from deleting, altering, anonymising, or overwriting, all records relating to my account and to the moderation action, in particular:

- (a) all access logs (IP addresses, User-Agent strings, session timestamps) for the period 01.03.2026 to the present;
- (b) all automated classifier/filter outputs, scores, thresholds, category labels and rule identifiers applied to the account, with the exact UTC start and end timestamps of the restriction;
- (c) any third-party reputation, blocklist or IP/CIDR-neighbourhood signal consulted, including the source and the value returned;
- (d) all human-review records preceding or following the action;
- (e) all internal tickets, notes and communications (incl. ticket #4253477);
- (f) the statement of reasons issued under Art. 17 DSA and its Transparency-Database identifier (PUID);
- (g) all billing records for the affected period (charges of 09.04.2026 and 09.05.2026).

+ Other relevant data/metadata not mentioned.

Legal basis: the above data are relevant to contemplated proceedings. Under German civil procedure, the destruction of evidence whose relevance has been notified (Beweisvereitelung) entitles the court to draw adverse inferences and may reverse the burden of proof. I further invoke my right to restriction of processing under Art. 18 GDPR with respect to these records, so that they are retained and not erased pending resolution.

Please confirm in writing within 14 days that these records are preserved. This notice is without prejudice to my separate requests under Art. 15 GDPR and Art. 17 DSA, and to all further rights.

Yours sincerely,

--

Regards | MfG

Dr. Artiom A. Kovnatsky

www.artiomkovnatsky.com | Founder S.V.E. | <https://zenodo.org/communities/sve>

On Fri, Apr 24, 2026 at 1:52 AM GitHub Developer Support <developer@githubsupport.com> wrote:

Please do not write below this line

Your request ([Ticket 4253477](#)) has been updated.

To review the status of your request and add additional comments, please visit: [Ticket 4253477](#).



GitHub (GitHub Support)

Apr 23, 2026, 11:52PM UTC

Hello,

Our apologies for the delay in getting back to you; we are currently dealing with higher than usual request volumes and are working to respond to priority issues such as yours as quickly as possible.

Sometimes our abuse detecting systems highlight accounts that need to be manually reviewed.

We've cleared the restrictions from your account, so you have full access to GitHub again.

Please let me know if you need anything else.

Best regards,

Charlie



Artiom Kovnatsky

Apr 7, 2026, 9:28AM UTC

Would you like to provide any additional information or context that would be helpful for our review of your reinstatement request?

My account has been flagged, which has disabled GitHub Copilot and halted all GitHub Actions. This is currently paralyzing my professional development work at stenon.

Please perform an immediate manual review to lift the flag and restore these services.

Thank you.

Does your claim involve content on GitHub or npm.js?

github

What is the username and repository or package name that was

impacted?

skovnats

Why are you requesting reinstatement?

account-not-visible

Have you previously contacted GitHub about this claim?

no

Confirm notice

confirmed

This email is a service from GitHub Support.

[R0XRJN-X5M93]